

point in the case because the request is broad and it is unclear what evidence regarding the cameras will be introduced by Plaintiff at trial. The Court will therefore **DEFER** this request to the jury trial.

Monetary Sanctions. “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” CCP § 2023.030(a).

Plaintiff requests monetary sanctions in the amount of \$16,667.99. This is comprised of eight hours that Troy Candiotti spent on the motion at the rate of \$550 per hour,¹ the \$60 filing fee, 12.5 hours spent by Adam Reisner on the motion and site inspection at the rate of \$950 per hour, and the cost of Mr. Reisner's flight to and from Redding for the site inspection. As discussed above, the Court will set the reasonably hourly rate at \$350. The time spent by Adam Reisner attending the site inspection is not warranted as the Court finds it unlikely that the site inspection would have been cancelled had Plaintiff known about the cameras being removed. That leaves eight hours for Mr. Candiotti and .5 hours for Mr. Reisner at the rate of \$350 for a total of \$2,975 plus \$60 for the filing fee. Sanctions will be imposed against Defendants in the amount of \$3,035. The Court notes that Defendants also requested monetary sanctions. Based on this ruling, the Court will not impose any monetary sanctions against Plaintiff.

The motion is **GRANTED** in part and **DENIED** in part. As stated above, the Court has reconsidered its ruling from July 22, 2024. The ruling remains unchanged other than the increased amount of the sanctions imposed against Defendants of \$4,260. The motion for issue sanction: “Gurmeel Singh and Reema Singh observed Plaintiff complain to Jerry Kirouac, the local ombudsman, regarding QCH's insufficient food supply, via a security camera feed, on or about September 27, 2021.” is **DENIED**. The motion for issue sanction “The security cameras recorded and broadcasted ‘sound and video.’” is **GRANTED**. The evidentiary sanction that Defendants Quality Care Home, Inc, Gurmeel Singh, Reema Singh, and Dawn Parra be precluded from introducing evidence regarding the security cameras is **DEFERRED** until trial in this matter. Monetary sanctions are imposed against Defendants in the amount of \$3,035. The Court makes no ruling regarding whether CACI 204 will be an appropriate jury instruction and this ruling should not be considered to affect either party's ability to request or oppose such instruction at trial. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE PEREZ

Case Number: 24PB-0032657

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Mauricio Zepeda Perez's claims from an automobile collision on August 2, 2023. The Petition was filed by the minor's parent, Imelda Perez. Probate Code § 3500 permits a parent to settle a claim for a minor so long as the claim is not against the parent and the petitioner is (1) Either parent if the parents of the minor are not living separate and apart or (2) The parent having the care, custody, or control of the minor if the parents of the minor are living separate and apart. Evidence in this regard was not submitted but can be provided in voir dire.

As for the Petition itself, California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's

¹ The Court notes that the moving papers include that this includes Mr. Candiotti's time attending the site inspection, however, ¶ 10 of the Declaration of Troy Candiotti, which is the evidence of time spent by Mr. Candiotti, does not include Mr. Candiotti attending the site inspection.

compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court finds good cause to excuse the attendance of the minor. The Court will ask counsel to voir dire Petitioner regarding the following: the authority to act under Prob. Code § 3500(a); the terms of the settlement; and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of purchase of annuity. **An appearance by the Petitioner is necessary on today's calendar.**

9:00 a.m. – Review Hearings

ASPIRE GENERAL INSURANCE COMPANY VS. ALLISON

Case Number: 22CVG-00899

This matter is on calendar for review regarding status of service. As an Order to Show Cause Re: Dismissal is on today's Law & Motion calendar, the Court intends to call the review hearing at 8:30 a.m. **An appearance is necessary at 8:30 a.m.**

BEARD VS. PRIME HEALTHCARE SERVICES-SHASTA, LLC

Case Number: 23CV-0202354

This matter is on calendar for review regarding status of arbitration and status of the stay. Neither party filed a status statement informing the Court of the status of arbitration. **An appearance is necessary on today's calendar.**

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

This matter is on calendar for review regarding status of the case. The Court notes that a Substitution of Attorney was filed on October 30, 2024 and Plaintiff has new counsel. The further Court notes that the litigation is at issue and intends to set a trial date. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than August 26, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

CITY OF ANDERSON VS. KRUMINS, ET AL.

Case Number: 23CV-0203032

This matter is on calendar for review regarding status of the receivership/property. The Twelfth report of Receiver was filed on October 31, 2024. **An appearance is necessary on today's calendar to discuss the bankruptcy discharge and the Receiver's plan moving forward.**

GALLEGOS VS. BENEFICIAL INSECTARY, INC

Case Number: 24CV-0205779

This matter is on calendar regarding status of stay. The Court intends to call the review hearing at on today's Law & Motion calendar. **An appearance is necessary at 8:30 a.m.**